

Olla v Olga [2025] DIFC SCT 405

NOVEMBER 26, 2025 SCT - JUDGMENTS AND ORDERS

Claim No: SCT 405/2025

THE DUBAI INTERNATIONAL FINANCIAL CENTRE COURTS
IN THE COURT OF FIRST INSTANCE

BETWEEN

OLLA

Claimant/Appellant

and

OLGA

Defendant/Respondent

ORDER WITH REASONS OF SIR JEREMY COOKE

UPON the claim having been filed on 10 June 2025 (the “Claim”)

AND UPON the Judgment of H.E. Justice Nassir Al Nasser (the “Judgment”) dismissing the Claimant’s Claim on 25 September 2025 (the “Judgment”)

AND UPON considering the Claimant’s Appeal Notice dated 17 October 2025 seeking permission to appeal the Judgment (the “Permission to Appeal Application”)

AND UPON considering the Defendant’s reply to the Permission to Appeal Application dated 24 November 2025

AND PURSUANT TO Part 4 and Part 53 of the Rules of the DIFC Courts (“RDC”)

IT IS HEREBY ORDERED THAT:

1. The Permission to Appeal Application is refused.

2. The Applicant must pay the costs of the Defendant in opposing his Permission to Appeal Application, to be assessed by the Registrar if not agreed.

Issued by:

Delvin Sumo

SCT Judge and Assistant Registrar

Date of Issue: 26 November 2025

At: 2pm

SCHEDULE OF REASONS

1. Any appeal has no realistic prospect of success and there is no other compelling reason why an appeal should be heard, quite apart from the fact that the Claimant appears to have filed the application one day out of time which might have justified an extension had there been any sufficient prospects of success.

2. Under RDC 44.110, every appeal is limited to a review of the decision of the Court below unless the Court considers it appropriate to hold a rehearing. In order for an appeal to succeed, it must be shown that the SCT Judge acted under a mistake of fact or law, took account of irrelevant matters, failed to take account of material considerations or came to a decision which was clearly unjust. An appeal court will not interfere with the findings of fact of the judge hearing in the evidence just because it might have taken a different view itself. In the present case, there are no grounds for an appeal court to take a different view

3. The SCT Judge did not err in law in holding that DIFC law governed the contract of employment as the Claimant was employed by a company in the DIFC, regardless of the term in the contract referring to the law of the UAE, see Article 4 of the DIFC Employment Law No.2 2019.

4. Furthermore, the SCT Judge applied the right test in law in determining whether there was termination for cause, as set out in paragraph 37 - 41 of the Judgment.

5. The SCT Judge made findings of fact which are beyond challenge in relation to the photo taken by the Claimant, his denials thereof to the Police and to the Defendant during the course of the investigation of his conduct, his dishonesty as shown thereby and the defamation of another employee as shown in the WhatsApp conversation presented to the Court. The conversation showed the Claimant's desire to spread malicious rumours in connection with the photo he took to a wide audience at the company. Had the photo been taken for good and valid reasons, the Claimant would have had no cause to lie about taking it, as he did until the lies could no longer be sustained. The fact that the police did not consider what was done a crime is immaterial.

The combination of the different acts complained of constituted conduct which not only warranted termination of itself but was such that a reasonable employer would take that action because of the effect of that conduct on the individual employee against whom the Claimant held a rooted antipathy, and on other employees managed by him who made anonymous complaints because of fear of being

treated similarly, thus creating a hostile work environment. The finding of creating a hostile work environment is unchallengeable and as Senior Business Development Manager, following after receiving coaching sessions in relation to prior issues relating to his relations with employees, is fatal to any argument that his conduct did not justify dismissal for cause.

6. In the circumstances, the Permission to Appeal Application is refused and the Claimant must pay the Defendants costs of the Application, to be assessed by the Registrar if not agreed.